

Court No. - 39

Case :- WRIT - C No. - 1432 of 2021

Petitioner :- Ashish

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Shridhar Tripathi

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Learned counsel Shri Narendra Kumar Tiwari representing the respondent nos.2 & 3 prays for and is granted a week's time to seek instruction.

As prayed, let the case be placed in the additional cause list on 3.2.2021.

Order Date :- 22.1.2021

M. Tariq

Court No. - 39

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Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

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Hon'ble Dinesh Pathak,J.

A supplementary affidavit filed by the learned counsel for the petitioner is taken on record.

Heard learned counsel appearing on behalf of the petitioner, learned Standing Counsel for the respondent no.1 and Mr. Narendra Kumar Tiwari, learned counsel representing the respondent nos.2 & 3.

The instant petition has been filed seeking following relief:

"i) Issue a writ, order or direction in the nature of certiorari quashing the impugned recovery notice dated 17.12.2020 issued by the respondent no.2 i.e. Poorvanchal Vidyut Vitran Nigam Limited, Bulandshahr, Jaunpur through its Executive Engineer."

Learned counsel for the respondent nos.2 & 3-Power Corporation submits that petitioner has a remedy to approach the authority concerned under Clause 6.5 of the U.P. Electricity Supply Code, 2005. He further submits that in case the petitioner approaches the said authority, the competent authority shall consider the same and pass appropriate order within the stipulated period.

Considering the facts and circumstances of the case, the petitioner is directed to approach the competent authority under Clause 6.5 of the Electricity Supply Code, 2005 within 15 days from today by making a fresh representation, which shall be considered and decided by the authority concerned in accordance with law within a period of one month thereafter after giving due opportunity of hearing to the petitioner.

Till the final decision is taken by the competent authority, no coercive action shall be taken against the petitioner.

With the aforesaid observations, the writ petition stands disposed of.

Order Date :- 3.2.2021

M. Tariq

Court No. - 39

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Counsel for Petitioner :- Shridhar Tripathi

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Civil Misc. Correction Application No. 2 of 2021

This is the correction application of our order dated 3.2.2021 moved on behalf of the petitioner.

In the fourth line of the fourth paragraph of the order, in place of 'Bulandshahr', '**Badshahpur**' be read.

The correction application is allowed.

Order Date :- 9.2.2021

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